

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 7, 2026
8:30 a.m./1:30 p.m.

11. DEENA UTLEY V. KENNETH UTLEY

24FL0820

Respondent filed a Request for Order (RFO) on February 19, 2026, seeking an order for Petitioner to undergo a vocational evaluation. Respondent requests the court order Petitioner to bear the cost of the evaluation solely. Petitioner was served by mail on February 24, 2026.

Petitioner filed a Responsive Declaration on April 15, 2026. Respondent was served electronically on April 15, 2026. Petitioner objects to the request to undergo a vocational evaluation at her own expense. Petitioner asserts, and has included exhibits documenting, that she has been found by the Social Security Administration to be permanently disabled. Further, Petitioner is 62 years old and in poor health. As such, Petitioner asserts it would be inappropriate and wasteful for the court to order a vocational evaluation.

Respondent filed a Reply Declaration on April 28, 2026. It was served the same day. Respondent reiterates his request for a vocational evaluation and brings an additional request for a Defense Medical Examination under Code of Civil Procedure section 2032.320. Respondent has included exhibits as attachments, which include unredacted bank statements.

Petitioner filed an Objection on April 29, 2026. Respondent was served the same day. Petitioner objects to the court considering Respondent's request for a medical examination, as it is beyond the scope of the original RFO. Further, Petitioner requests the unredacted bank statements contained in Respondent's exhibit be placed under seal.

Respondent filed an Amended Reply on April 30, 2026 along with a Request to Seal the original Reply, due to the unredacted bank statements. The Amended Reply includes the statements with the appropriate redactions.

The court has read and considered the filings as outlined above. The court grants the request to seal the original Reply Declaration filed on April 28th due to the unreacted bank statements. The court grants the request for the vocational evaluation. Petitioner shall participate in a vocational evaluation as requested by Respondent. Respondent is directed to pay for the evaluation, subject to reallocation.

The court denies Respondent's request for a Medical Examination pursuant to Code Civil Procedure section 2032.320. The court finds the request to be beyond the scope of the original RFO and therefore, it is being denied without prejudice.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 7, 2026
8:30 a.m./1:30 p.m.

All prior orders not in conflict with this order remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #11: THE COURT GRANTS THE REQUEST TO SEAL THE ORIGINAL REPLY DECLARATION FILED ON APRIL 28TH DUE TO THE UNREACTED BANK STATEMENTS. THE COURT GRANTS THE REQUEST FOR THE VOCATIONAL EVALUATION. PETITIONER SHALL PARTICIPATE IN A VOCATIONAL EVALUATION AS REQUESTED BY RESPONDENT. RESPONDENT IS DIRECTED TO PAY FOR THE EVALUATION, SUBJECT TO REALLOCATION. THE COURT DENIES RESPONDENT'S REQUEST FOR A MEDICAL EXAMINATION PURSUANT TO CODE CIVIL PROCEDURE SECTION 2032.320. THE COURT FINDS THE REQUEST TO BE BEYOND THE SCOPE OF THE ORIGINAL RFO THEREFORE THE REQUEST IS BEING DENIED WITHOUT PREJUDICE.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 7, 2026
8:30 a.m./1:30 p.m.

13. RACHAEL WORKMAN V. MATTHEW WORKMAN

23FL0947

This matter is before the court for a CCRC review and the issue of child support, as requested in Petitioner's Request for Domestic Violence Restraining Order (DVRO) filed May 22, 2025.

The parties attended CCRC on March 19, 2026. The court is in receipt of a CCRC report dated April 23, 2026, a copy of which was mailed to both parties on April 27, 2026, per the Clerk's Certificate of Mailing filed that day.

Respondent filed a Reply Declaration to the CCRC report on April 30, 2026. It was served the same day. Respondent objects to the recommendations in the April 23rd CCRC report and requests the court order unsupervised visitation and the schedule as set forth in the report. Respondent agrees to continue to use Soberlink testing, if the court grants unsupervised parenting time. Respondent objects to a further substance abuse assessment.

Petitioner's Reply Declaration Regarding 4/23/2026 CCRC Report was filed on May 1, 2026. It was served on April 30th. She is requesting sole legal custody and primary physical custody. She asks that Respondent have four hours of non-professionally supervised visits twice per week on mutually agreed upon dates and times. She asks that Jared True and/or his wife serve as non-professional supervisors and the visits be restricted to El Dorado, Placer and Sacramento counties. She asks the court to order Respondent not to drive the children during visits. Finally, she asks the court to uphold the prior Soberlink testing as follows: Respondent to continue to test two times per day and 10 minutes prior to visits. If Respondent tests positive or misses a test in the week prior to visitation, Petitioner has the authority to cancel the visit.

Regarding custody and visitation, the court finds the recommendations in the CCRC report to be in the best interests of the children and they are hereby adopted as the orders of the court with the following modifications. Respondent's visits shall be non-professionally supervised by either Jared True, Mr. True's wife, or Respondent's mother. Prior to any supervision taking place, the non-professional supervisor shall complete and file an FL-324(NP). Respondent's visits shall be restricted to El Dorado, Placer, or Sacramento county. Respondent shall not drive the children during his visits. The non-professional supervisor may drive the children during the visit if necessary. Respondent shall continue to use Soberlink to test twice per day and 10 minutes prior to visitation. If